Regulation 19
Application

1 This chapter shall apply to all ships of 400 gross tonnage and above.

2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly. However,

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SOURCE: MEPC.328(76).pdf
2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly. However, each Party should ensure, by the adoption of appropriate measures, that such ships are constructed and act in a manner consistent with the requirements of chapter 4 of this Annex, so far as is reasonable and practicable.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 34 -

.2 ships not propelled by mechanical means, and platforms including FPSOs and FSUs and drilling rigs, regardless of their propulsion.

3 Regulations 22, 23, 24 and 25 of this Annex shall not apply to ships which have non-conventional propulsion, except that regulations 22 and 24 shall apply to cruise passenger ships having non -conventional propulsion and LNG carriers having conventional or non-conventional propulsion, delivered on or after 1 September 2019, as defined in

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SOURCE: MEPC.328(76).pdf
ships having non -conventional propulsion and LNG carriers having conventional or non-conventional propulsion, delivered on or after 1 September 2019, as defined in regulation 2.2.1, and regulations 23 and 25 shall apply to cruise passenger ships having non-conventional propulsion and LNG carriers having conventional or non -conventional propulsion. Regulations 22, 23, 24, 25 and 28 shall not apply to category A ships as defined in the Polar Code.

4 Notwithstanding the provisions of paragraph 1 of this regulation, the Administration may waive the requirement for a ship of 400 gross tonnage and above to comply with regulations 22 and 24 of this Annex.

5 The provision of paragraph 4 of this regulation shall not apply to ships of 400 gross tonnage and above:

.1 for which the building contract is placed on or after 1 January 2017; or

.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2017; or

.3 the delivery of which is on or after 1 July 2019; or

.4 in cases of a major conversion of a new or existing ship, as defined in

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a similar stage of construction on or after 1 July 2017; or

.3 the delivery of which is on or after 1 July 2019; or

.4 in cases of a major conversion of a new or existing ship, as defined in regulation 2.2.17 of this Annex, on or after 1 Janu ary 2017, and in which regulations 5.4.2 and 5.4.3 of this Annex apply.

6 The Administration of a Party to the present Convention which allows the application of paragraph 4, or suspends, withdraws or declines the application of that paragraph, to a ship entitled to fly its flag shall forthwith communicate to the Organization for circulation to the Parties to the present Protocol particulars thereof, for their information.

Regulation 20
Goal

The goal of this chapter is to reduce the carbon intensity of international shipping, working towards the levels of ambition set out in the Initial IMO Strategy on reduction of GHG emissions from ships.

Regulation 21
Functional requirements

In order to achieve the goal set out in regulation 20 of this Annex, a ship to which this chapter applies shall comply, as applicable, with the following functional requirements to reduce its carbon intensity:

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SOURCE: MEPC.328(76).pdf
Functional requirements

In order to achieve the goal set out in regulation 20 of this Annex, a ship to which this chapter applies shall comply, as applicable, with the following functional requirements to reduce its carbon intensity:
.1 the technical carbon intensity requirements in accorda nce with regulations 22, 23, 24 and 25 of this Annex; and

.2 the operational carbon intensity requirements in accordance with regulations 26, 27 and 28 of this Annex.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

Regulation 22
Attained Energy Efficiency Design Index (attained EEDI)

1 The attained EEDI shall be calculated for:

.1 each new ship;

.2 each new ship which has undergone a major conversion; and

.3 each new or existing ship which has undergone a major conversion that is so extensive that the ship is regarded by the Administration as a newly constructed ship,

which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14

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SOURCE: MEPC.328(76).pdf
so extensive that the ship is regarded by the Administration as a newly constructed ship,

which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.20, 2.2.22, and 2.2.26 to 2.2.29 of this Annex. The attained EEDI shall be specific to each ship and shall indicate the estimated performance of the ship in terms of energy efficiency, and be accompanied by the EEDI technical file that contains the information necessary for the calculation of the attained EEDI and that shows the process of calculation. The attained EEDI shall be verified, based on the EEDI technical file, either by the Administration or by any organization duly authorized by it.

2 The attained EEDI shall be calculated taking into account the guidelines develo ped by the Organization.

3 For each ship subject to regulation 24 of this Annex, the Administration or any organization duly authorized by it shall report to the Organization the required and attained EEDI values and relevant information, taking into acco unt the guidelines developed by the Organization, via electronic communication:

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SOURCE: MEPC.328(76).pdf
organization duly authorized by it shall report to the Organization the required and attained EEDI values and relevant information, taking into acco unt the guidelines developed by the Organization, via electronic communication:

.1 within seven months of completing the survey required under regulation 5.4 of this Annex; or

.2 within seven months following 1 April 2022 for a ship delivered prior to 1 April 2022.

Regulation 23

Attained Energy Efficiency Existing Ship Index (attained EEXI)

1 The attained EEXI shall be calculated for:

.1 each ship; and

.2 each ship which has undergone a major conversion,

which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.22, and 2.2.26 to 2.2.29 of this Annex. The attained EEXI shall be specific to each ship and shall indicate the estimated performance of the sh ip in terms of energy efficiency, and be accompanied by the EEXI technical file which contains the information necessary for the calculation of the attained EEXI and which shows the process of the calculation. The attained EEXI shall be verified, based on the EEXI technical file, either by the

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necessary for the calculation of the attained EEXI and which shows the process of the calculation. The attained EEXI shall be verified, based on the EEXI technical file, either by the Administration or by any organization duly authorized by it.

2 The attained EEXI shall be calculated taking into account the guidelines developed